

STATE OF NEW YORK

6509--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 5, 2025

Introduced by M. of A. SEPTIMO -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to ovarian cancer research

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of paragraph (b) and paragraph (d) of
2 subdivision 1 of section 2410 of the public health law, the opening
3 paragraph of paragraph (b) as added and paragraph (d) as amended by
4 chapter 32 of the laws of 2008, are amended to read as follows:
5 the governor shall appoint six regional members, three of whom shall
6 serve as full voting members and three of whom shall serve as alterna-
7 tive members without voting rights. Such regional members shall be
8 persons who have or have had breast or ovarian cancer, and shall be
9 actively involved with a community-based, grass-roots breast or ovarian
10 cancer organization. Two of such appointments shall be made upon the
11 recommendation of the temporary president of the senate and two shall be
12 made upon the recommendation of the speaker of the assembly. One
13 regional member shall be appointed from each of the following geographic
14 areas of the state: Long Island, New York City, the Hudson Valley,
15 Northern New York, Central New York and Western New York. The order of
16 appointments and recommendations for appointments and voting rights
17 shall rotate as follows:
18 (d) the governor shall appoint one voting member who shall be a person
19 who has or has survived breast or ovarian cancer and one voting member
20 who shall be a person who has or has survived prostate or testicular
21 cancer.
22 § 2. Paragraphs (a), (b) and (c) of subdivision 1 of section 2411 of
23 the public health law, as amended by section 5 of part A of chapter 60
24 of the laws of 2014, are amended to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) Survey state agencies, boards, programs and other state govern-
2 mental entities to assess what, if any, relevant data has been or is
3 being collected which may be of use to researchers engaged in breast or
4 ovarian cancer research;

5 (b) Consistent with the survey conducted pursuant to paragraph (a) of
6 this subdivision, compile a list of data collected by state agencies
7 which may be of assistance to researchers engaged in breast or ovarian
8 cancer research as established in section twenty-four hundred twelve of
9 this title;

10 (c) Consult with the Centers for Disease Control and Prevention, the
11 National Institutes of Health, the Federal Agency For Health Care Policy
12 and Research, the National Academy of Sciences and other organizations
13 or entities which may be involved in cancer research to solicit both
14 information regarding breast or ovarian cancer research projects that
15 are currently being conducted and recommendations for future research
16 projects;

17 § 3. Section 2412 of the public health law, as amended by chapter 219
18 of the laws of 1997, is amended to read as follows:

19 § 2412. Agency implementation. All state agencies, including, but not
20 limited to, the departments of agriculture and markets, environmental
21 conservation, and health, shall review their programs and operations
22 (pursuant to guidelines established by the board) to determine whether
23 they currently collect data which may be of use to researchers engaged
24 in breast, ovarian, prostate or testicular cancer research. Any agency
25 collecting such data shall forward a description of the data to the
26 health research science board.

27 § 4. Section 2413 of the public health law, as amended by section 5-a
28 of part A of chapter 60 of the laws of 2014, is amended to read as
29 follows:

30 § 2413. Biennial report. The commissioner shall submit a report on or
31 before January first commencing in nineteen hundred ninety-nine, and
32 biennially thereafter, to the governor, the temporary president of the
33 senate and the speaker of the assembly concerning the operation of the
34 health research science board. Such report shall include recommendations
35 from the health research science board including, but not limited to,
36 the types of data that would be useful for breast and ovarian cancer
37 researchers and whether private citizen use of residential pesticides
38 should be added to the reporting requirements. The report shall also
39 include a summary of research requests granted or denied. In addition,
40 such report shall include an evaluation by the commissioner, the commis-
41 sioner of the department of environmental conservation and the health
42 research science board of the basis, efficiency and scientific utility
43 of the information derived from pesticide reporting pursuant to sections
44 33-1205 and 33-1207 of the environmental conservation law and recommend
45 whether such system should be modified or continued. The report shall
46 include a summary of the comments and recommendations presented by the
47 public at the board's public hearings.

48 § 5. This act shall take effect on the sixtieth day after it shall
49 have become a law.